prisoners, very poorly accommodated. I should not omit mentioning that I found the American prisoners (except at Pembroke) clean and well clothed—the latter, not entirely from the generous supplies they have had from this country, but in conjunction with that from their own. At my visits in 1782, the Americans were with the other prisoners of war, and had an allowance from the States; as I mentioned at Forton.

Before I leave this subject, it will be but justice to mention the care and assiduity of the commissioners, who themselves visited many of the prisons in England, and dismissed such agents as had abused their trust; and who are ready to receive any information which may be for the benefit of those committed to their care.

SECTION VI

SCOTCH AND IRISH PRISONS

It may not be improper, before I enter on a particular account of English prisons, to mention what further occurred to me that seemed worthy of observation, in my journeys into Scotland and Ireland in 1779, 1782 and 1783.

The prisons that I saw in Edinburgh, Glasgow, Perth, Stirling, Jedburgh, Haddington, Ayr, Kelso, Nairn, Banff, Inverness, etc., were old buildings, dirty and offensive, without courtyards and also generally without water.

If a prisoner for debt declares upon oath that he has not wherewithal to maintain himself, the creditor must aliment him within ten days after notice is given for that purpose, with at least threepence a day, but generally the magistrates order sixpence. By the process of *cessio bonorum*, a debtor after being a month in prison, may obtain his liberty, and be secured against execution for any previous debts, by making a surrender of all his effects to be divided among his creditors: though if he afterwards comes into better circumstances, his effects may be attached for the payment of those debts. This compassionate law prevents a creditor putting his debtor in prison, unless he has good reason to believe he is acting fraudulently.

Perjury is not frequent in Scotland. The oath, and the form of administering it, are very solemn. The witness, holding up his right hand, repeats the following words after the judge: "By God himself, and as you shall answer to God at the great day of judgment, you shall declare the truth, and nothing but the truth, in so far as you know, or shall be asked at you." The depositions are read over by the clerk, and signed by the witnesses and the judge. It is enacted by the twentieth of George II that "the circuit-courts shall be regularly held twice in every year, within that part of Great Britain, called Scotland, and the Judges thereof shall continue by the space of six days at least, at each town or place where the circuit-courts shall be held, for the dispatch of business."

There are in Scotland but few prisoners; this is partly owing